

PureTask fcra-disclosure

PureTask – Standalone Background Check Disclosure and Authorization

Version: 2.0

IMPORTANT: This is a **separate, standalone document**, distinct from the PureTask Terms of Service, Privacy Policy, Pro Independent Contractor Agreement, and other Platform documents. Federal and California law require certain background-check disclosures to be made in a standalone document containing **only** the disclosure (and, on subsequent pages, related state notices and authorization), as established in *Gilberg v. California Check Cashing Stores, LLC*, 913 F.3d 1169 (9th Cir. 2019).

Please read carefully before signing.

PART 1 – Federal Fair Credit Reporting Act (FCRA) Disclosure

Disclosure Regarding Background Investigation

PureTask LLC (“PureTask”) may obtain a “**consumer report**” and/or “**investigative consumer report**” about you from a third-party consumer reporting agency for trust-and-safety purposes related to your use of the PureTask Platform as an independent service professional.

The scope of the report may include any or all of the following:

- **Identity verification** (name, address history, date of birth, SSN trace);
- **Criminal-history records** at the federal, state, and county level (felonies and misdemeanors, currently pending and historical, subject to applicable lookback periods);
- **Sex-offender registry** checks (national and state);
- **Watchlist screening** (OFAC SDN, terrorism, money-laundering, sanctions);
- **Motor-vehicle records**, where Pro Services involve driving (excluding personal commuting);
- **Verification of business license, EIN, or Certificate of Insurance** that you provide to PureTask;
- **Address history** and prior aliases.

The report will be prepared by:

[Vendor name and address – e.g., Checkr, Inc., One Montgomery Street, Suite 2400, San Francisco, CA 94104; phone 844-824-3257; checkr.com]

You may request a **copy of the consumer report** obtained about you, or a **summary of your rights under the FCRA**, at any time by contacting **otherpuretask@gmail.com** with the subject line “**FCRA Report Request.**”

A **Summary of Your Rights Under the Fair Credit Reporting Act** is provided in **Part 4** of this document.

Ongoing Rechecks

You acknowledge and agree that PureTask may obtain **updated consumer reports and investigative consumer reports** about you at any time during your use of the Platform — not only at signup. Updated reports may be obtained:

- **Periodically** (no less than annually);
- **Upon receipt of a credible complaint** about you;
- **Upon receipt of trust-and-safety signals** suggesting changed circumstances;
- **As required by law or by PureTask’s background-check vendor’s ongoing monitoring services**; and
- **At any other reasonable time** in PureTask’s discretion.

Your authorization in **Part 5** authorizes ongoing rechecks for the duration of your use of the Platform. **Continued use of the Platform constitutes renewed consent.** You may revoke this authorization at any time by emailing **otherpuretask@gmail.com**, subject “**FCRA Revocation.**” Revocation will result in deactivation of your Pro account, but does not retroactively affect prior reports.

Signature page follows in Part 5. Please review Parts 2 through 4 if applicable to you.

PART 2 – California Applicants Only (ICRAA, CCRAA, and Fair Chance Act)

(A) California Investigative Consumer Reporting Agencies Act (ICRAA) Notice

Notice Regarding Investigative Consumer Reports. Under the California Investigative Consumer Reporting Agencies Act (**Cal. Civ. Code § 1786 et seq.**), you have the right to be informed when an **investigative consumer report** about you is procured for employment-style or trust-and-safety purposes.

An investigative consumer report includes information on your character, general reputation, personal characteristics, or mode of living obtained through personal interviews or other means.

The report will be prepared by:

| **[Vendor name and address – same as Part 1]**

The nature and scope of the most common information that may be requested includes the categories listed in Part 1 above.

You have the right to request:

1. The **nature and scope** of the investigation requested;
2. A **copy** of any investigative consumer report obtained about you, by checking the box below or in Part 5; and
3. A **summary** of your rights under California Civil Code § 1786.22.

☐ **Yes, please provide me with a copy of any investigative consumer report prepared about me.**

A summary of California rights under § 1786.22 is provided in **Part 4(B)**.

(B) California Consumer Credit Reporting Agencies Act (CCRAA) Notice

If PureTask obtains a **consumer credit report** about you (not currently anticipated for Pro screening), you have additional rights under **Cal. Civ. Code § 1785 et seq.**, including notice of the

source of the report and access to its contents. PureTask does **not** currently obtain credit reports as part of Pro screening.

(C) California Fair Chance Act (Gov. Code § 12952) and Cannabis Conviction Limits

PureTask is subject to the **California Fair Chance Act** and related employment-style fair-chance provisions, even though Pros are independent contractors, to the extent such provisions are extended to gig-economy relationships by regulation or case law. Under the Fair Chance Act and related California law:

- PureTask **will not** inquire about a conviction history before making an initial eligibility determination;
- PureTask's background-check vendor returns information only after the initial eligibility determination;
- **Marijuana-related convictions:** PureTask **will not** consider, ask about, or use against you any conviction, arrest, or detention for a non-felony marijuana-possession offense that occurred more than **two years ago**, consistent with **Cal. Lab. Code § 432.8** and **Cal. Gov. Code § 11362.45**. PureTask also **will not** consider, in connection with eligibility decisions, an applicant's **off-duty cannabis use** outside the workplace or any results of a non-psychoactive cannabis-metabolite test, consistent with **AB 2188** and **SB 700** (effective January 1, 2024);
- **Sealed, expunged, or dismissed convictions:** PureTask **will not** consider these against you (Cal. Lab. Code § 432.7);
- **Juvenile records:** not considered;
- **Arrests not leading to conviction:** not considered, with limited exceptions for currently pending matters.

If PureTask intends to take adverse action based on a conviction, you will receive a **Pre-Adverse Action Notice** with a copy of the report and a **Notice of Rights**, and a **5-business-day opportunity** to respond, dispute, or provide evidence of

rehabilitation or mitigation, before any final adverse action is taken. After consideration of any response, PureTask will issue an **Adverse Action Notice** if it proceeds.

PART 3 – Texas and Florida State-Specific Notices

Texas Applicants

Under the **Texas Business and Commerce Code § 20.05**, you have the right to obtain a copy of any consumer report obtained about you from the consumer reporting agency, and to dispute the accuracy or completeness of any item in the report directly with the consumer reporting agency.

Texas does **not** generally restrict the consideration of conviction history for independent-contractor eligibility decisions, but PureTask follows reasonable and individualized assessment practices, including the federal **EEOC Enforcement Guidance** (April 25, 2012) factors: nature and gravity of the offense, time elapsed, and nature of the position/role.

Florida Applicants

Under **Florida Statutes § 559.72** (Consumer Collection Practices) and **§ 501.005** (Florida Information Protection Act), consumer reports obtained for your use of the Platform will be handled with reasonable security and used only for the trust-and-safety purposes described in this disclosure.

Florida's "**Ban the Box**" restrictions apply to public-sector employers and to certain local jurisdictions. PureTask is not currently subject to these as a private marketplace platform, but voluntarily

follows the EEOC individualized-assessment approach described above.

PART 4 – Summary of Your Rights

(A) Summary of Your Rights Under the Federal Fair Credit Reporting Act

The federal **Fair Credit Reporting Act (FCRA)** promotes the accuracy, fairness, and privacy of information in the files of consumer reporting agencies. Your major rights under the FCRA include:

- **You must be told if information in your file has been used against you.** Anyone who uses a consumer report to take adverse action — including denial of eligibility — must tell you and give you the name, address, and phone number of the agency that provided the information.
- **You have the right to know what is in your file.** You may request and obtain all the information about you in the files of a consumer reporting agency (your “file disclosure”). In some cases, the disclosure is free.
- **You have the right to ask for a credit score.** (Not generally applicable to Pro screening.)
- **You have the right to dispute incomplete or inaccurate information.** The consumer reporting agency must investigate, usually within 30 days.
- **Consumer reporting agencies must correct or delete inaccurate, incomplete, or unverifiable information.**
- **Consumer reporting agencies may not report outdated negative information.** Most negative information older than seven years may not be reported (ten years for bankruptcies).

- **Access to your file is limited** to people with a valid need.
- **You must give your consent** for reports to be provided for screening purposes.
- **You may limit “prescreened” offers** at 1-888-5-OPTOUT (1-888-567-8688).
- **You may seek damages from violators** in state or federal court.

For more information, contact the **Consumer Financial Protection Bureau (CFPB)**: 1700 G Street NW, Washington, DC 20552; consumerfinance.gov.

(B) Summary of California Rights Under Cal. Civ. Code § 1786.22

If an **investigative consumer report** is sought, you have the right to:

1. **Visit the consumer reporting agency’s offices** during normal business hours, with reasonable notice, to inspect the files maintained on you, accompanied by one other person of your choosing if desired.
2. **Receive a copy of the report by certified mail** if you provide identification.
3. **Receive a summary of the file by telephone**, upon request, if you provide proper identification.

The consumer reporting agency must provide trained personnel to explain to you any information in your file and must provide a written explanation of any coded information in your file. You have the right to dispute the completeness or accuracy of any item.

PART 5 – Authorization to Conduct Background Check

I have read and understand the foregoing **Disclosure** (Parts 1-4) regarding the consumer reports that PureTask LLC may obtain about me for trust-and-safety purposes related to my use of the PureTask Platform.

By signing below, I **authorize** PureTask LLC and its designated consumer reporting agency (identified in Part 1) to obtain consumer reports and investigative consumer reports about me, including the categories listed in Part 1.

I understand that:

- I have the right to request a copy of any consumer report obtained;
- I have the right to dispute the accuracy of any information in the report directly with the consumer reporting agency;
- A consumer report or investigative consumer report may be obtained **at any time during my use of the Platform, not just at signup**, and I authorize such ongoing rechecks for trust-and-safety purposes;
- I may revoke this authorization at any time by emailing **otherpuretask@gmail.com**, subject "**FCRA Revocation**," but revocation will result in deactivation of my Pro account;
- Adverse information in a report may affect my eligibility to use the Platform, but I will receive a **Pre-Adverse Action Notice** with a copy of the report and a summary of my FCRA rights and a **5-business-day opportunity to respond**, and a separate **Adverse Action Notice** if adverse action is finally taken;
- For California-only screenings, PureTask will apply the additional protections of the **California Fair Chance Act** and related laws as described in Part 2(C).

Applicant Signature: _____ **Printed**
Name: _____ **Date of Birth:** _____
_____ **Last 4 of SSN (for**
identification only): _____ **Current**
Address: _____ **Date Signed:** _____

California Applicants Only

☐ I have read the California ICRAA notice in Part 2 and **request a copy** of any investigative consumer report prepared about me.

☐ I have read the California ICRAA notice in Part 2 and **do not request a copy** at this time.

Appendix A – Pre-Adverse and Adverse Action Workflow (Operational Reference)

This appendix describes PureTask’s pre-adverse / adverse action workflow. It is **not** part of the disclosure and authorization presented to applicants but is included here so that PureTask’s operational practices are documented.

Step 1 – Receipt of Report

PureTask receives the consumer report from the background-check vendor. PureTask reviews any flagged items for accuracy, recency, and relevance.

Step 2 – Individualized Assessment (EEOC Guidance and Cal. Fair Chance Act)

For any conviction or other flagged item, PureTask conducts an individualized assessment considering:

- Nature and gravity of the offense;
- Time elapsed since offense, sentence, or release;
- Nature of the Platform role (cleaning in private homes);
- Evidence of rehabilitation or mitigation;

- Whether the conviction is excluded under California Fair Chance Act / SB 1480 / AB 2188 / SB 700;
- Any evidence the applicant provides.

Step 3 – Pre-Adverse Action Notice (FCRA § 1681b(b)(3) and Cal. Civ. Code § 1786.40)

If PureTask is considering adverse action, PureTask provides the applicant with:

- A **Pre-Adverse Action Notice** (separate template, “07A”);
- A **copy of the consumer report**;
- The **Summary of Rights Under the FCRA**;
- For California applicants, the **California Fair Chance Act Notice**;
- A **5-business-day opportunity** (longer for California) to respond, dispute, or provide evidence.

Step 4 – Wait Period

PureTask waits at least **5 business days** (and longer if the applicant requests an extension) before taking adverse action, to allow the applicant to:

- Dispute inaccuracies with the consumer reporting agency directly;
- Provide context, mitigation, or rehabilitation evidence;
- Respond to the substance of the flagged information.

Step 5 – Adverse Action Notice (if proceeding)

If, after considering the applicant’s response, PureTask proceeds with adverse action, PureTask provides the applicant with:

- An **Adverse Action Notice** (separate template, “07B”);
- A **copy of the consumer report** (if not previously provided or if updated);
- The **Summary of Rights Under the FCRA**;
- The name, address, and phone number of the consumer reporting agency;

- A statement that the consumer reporting agency did not make the decision;
- A notice that the applicant has the right to a free copy of the report from the CRA within 60 days, and the right to dispute its accuracy.

Step 6 – Recordkeeping

PureTask retains:

- The signed Disclosure and Authorization;
- The consumer report received;
- Any internal assessment notes;
- Any applicant response;
- Any pre-adverse and adverse action notices sent;

For **at least 5 years** after the date of the action (or longer if required by applicable law).

This document is a general template. It is not legal advice. Background-check disclosures are highly regulated; the form should be reviewed by a licensed California attorney or FCRA-specialized counsel and confirmed with your background-check vendor before being used in production. The FCRA-compliant form must be presented as a standalone document and may not be combined with the Terms of Service, Pro Independent Contractor Agreement, or any other agreement. The pre-adverse and adverse action workflow described in Appendix A must be implemented operationally with separate notice templates.